

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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DANIEL MCFADDEN,

Plaintiff,

**STIPULATION AND
ORDER OF DISMISSAL**

-against-

14-CV-0541 (BMC)

THE CITY OF NEW YORK, POLICE OFFICER STANLEY
SHIELD #3809, POLICE OFFICER JUSTIN PUCCIA
SHIELD #15693, POLICE OFFICER CECILIA PENA
SHIELD #1303, POLICE OFFICER TARRENTINO, POLICE
SERGEANT WILLIAM HALL, JOHN DOE #1-4,

Defendants.
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WHEREAS, the parties have reached a settlement agreement and now desire to resolve the remaining issues raised in this litigation, without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, that

1. The above-referenced action is hereby dismissed with prejudice; and

~~2. Notwithstanding the dismissal of this action in accordance with this agreement, the District Court shall continue to maintain jurisdiction over this action for the purpose of enforcing the terms of the settlement agreement reached between the parties and set forth in the Stipulation of Settlement executed by the parties in this matter.~~

BMC

Stoll, Glickman, & Bellina
Attorneys for Plaintiff
475 Atlantic Avenue, 3rd Floor
Brooklyn, New York 11217

By:



Nicholas H Mindicino
Attorney for Plaintiff

ZACHARY W. CARTER
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City of New York
*Attorney for Defendants City, Stanley,
Puccia, Pena, Tarlentino and Hall*
100 Church Street, Rm. 3-212
New York, New York 10007

By:



Ryan G. Shaffer
Assistant Corporation Counsel

SO ORDERED: *

Digitally signed by Brian M. Cogan

HON. BRIAN M COGAN
UNITED STATES DISTRICT JUDGE

Dated: New York, New York
May 22, 2014

* The Court does not retain jurisdiction to enforce settlement terms without being told what those terms are.